Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1427
Claimant:	Melanie Rivera
Adjuster:	Darin Tyler

2023-12-15 - Claim opened following report of a side impact collision at a signalized intersection. Claimant reports their vehicle was struck on the driver side by a vehicle that entered the intersection against the signal. Claimant states they were transported from the scene by ambulance with complaints of pain in the right knee. Police report requested and pending.

2023-12-22 - Spoke with claimant by phone. Claimant is not represented by an attorney and says they prefer to handle the claim directly. Claimant describes persistent right knee pain, swelling, and difficulty bearing weight since the collision. Explained the claims process, the documents needed, and the option to seek independent legal advice if they wish. Claimant has been provided a written statement form to complete.

2023-12-23 - Received the at-fault party's statement through their carrier. The other driver admits to not stopping for the red signal but disputes the speed of approach. Intersection camera footage has been requested from the municipality. Liability appears probable against the other driver, pending review of the footage and police findings.

2023-12-29 - Claimant submitted a medical release and treatment summary from the treating clinic. Diagnosis noted as a right knee sprain with possible meniscal involvement; MRI has been ordered by the treating physician. Claimant reports missing several days of work and is awaiting employer documentation of time lost. Reviewed the file for any prior right knee complaints; none found in the records provided so far.

2024-01-01 - Followed up with claimant regarding the outstanding wage loss form and MRI results. Claimant is continuing physiotherapy twice weekly and reports slow improvement. Advised claimant that the file will remain open pending the imaging report and final medical update. Scheduled a reminder to review liability and the intersection footage once received.

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Recorded Statement

Claim number:	C-1427
Statement of:	Melanie Rivera
Taken by:	Darin Tyler
Date:	2023-12-12

Q: Thanks for taking the time to speak with me today. This recorded statement is about the collision at the intersection in Katy, Texas. Do you understand that this call is being recorded?

A: Yes, I understand.

Q: Can you tell me in your own words what happened?

A: I was driving through the intersection on a green light. The other car came from my right side and didn't stop for their red light. They hit the passenger side of my car pretty hard.

Q: Were you wearing your seatbelt at the time?

A: Yes, I was. The airbags deployed on my side, though, and I hit my left knee on the door frame and the center console.

Q: Did you notice any warning signs before the impact, like the other vehicle slowing or honking?

A: No. I didn't see them until they were already in the intersection. I had maybe a second to react.

Q: Where do you feel pain right now?

A: My left knee is the worst. It's swollen and I can't fully straighten it. I also have some stiffness in my neck and lower back.

Q: Have you seen a doctor or gone to an ugrent care facility since the accident?

A: Yes, I went to urgent care that same afternoon. They took X-rays and said there was no fracture, but they referred me to an orthopedic specialist for an MRI because of the swelling and instability.

Q: Did you have any problems with that knee before this accident?

A: No, not that I can recall. I play recreational softball and I've never had any issues with it.

Q: Is there anything else you think I should know about the collision or your injuries?

A: Only that I'm still having trouble walking up stairs, and I've missed a few days of work because of it. I'm happy to provide the medical records.

Q: Thank you. We'll follow up with you once we've reviewed everything.

A: Okay, thank you.